

24STCV16503 24STCV16503

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-06-25

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Case Number: 24STCV16503 Hearing Date: June 25, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 3:18 PM on June 22, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 24, 2026.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of intention to appear is not given.

Plaintiff alleges that Defendant could

not repair the vehicle to conform to warranties.

The parties settled the case. Plaintiff

moves for an award of attorney's fees, costs and expenses.

TENTATIVE RULING

Plaintiff Robert Fuiava's motion

for attorney's fees is GRANTED in the amount of \$52,768.00.

As for costs

and expenses, Plaintiffs filed a memorandum of costs on April 9, 2026 seeking \$3,231.04

in costs. Defendant did not file a timely motion to tax costs. \$3,231.04 is the

amount of costs which will be awarded. (Cal. Rules of Court, Rule 3.1700(b)(4).)

ANALYSIS

Motion For Attorney

Fees, Costs and Expenses

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses

the points which the Court deems to be material to the disposition of this motion.

The Court denies

Plaintiff's request to strike the opposition for violations of CRC Rules 3.113 and

2.108.

The parties settled the case. Plaintiff

moves for an award of attorney's fees, costs and expenses in the amount of \$58,706.00,

plus a 0.15 multiplier in the amount of \$8,805.90.

Plaintiff brought

causes of action pursuant to the Song-Beverly Act, Civil Code § 1790, et seq. Civil

Code, § 1794(d) provides:

(d) If the buyer

prevails in an action under this section, the buyer shall be allowed by the court

to recover as part of the judgment a sum equal to the aggregate amount of costs

and expenses, including attorney's fees based on actual time expended, determined

by the court to have been reasonably incurred by the buyer in connection with the

commencement and prosecution of such action.

Plaintiff obtained a settlement against

GM in the amount of \$108,000.00, inclusive of any loan payoff and Civil Penalties,

plus, attorneys' fees, costs, and expenses as the prevailing party.

The determination

of reasonable amount of attorney fees is within the sound discretion of trial courts.

(PLCM Group v. Drexler (2000) 22 Cal.4th

1084, 1095; Akins

v. Enterprise Rent-A-Car Co. (2000) 79 Cal.

App. 4th 1127, 1134.) "The determination of what constitutes a reasonable

fee generally 'begins with the 'lodestar,' i.e., the

number of hours reasonably expended multiplied by the reasonable hourly rate...." "[T]he lodestar

is the basic fee for comparable legal services in the community; it may be adjusted

by the court based on factors including, as relevant herein, (1) the novelty and

difficulty of the questions involved, (2) the skill displayed in presenting them,

(3) the extent to which the nature of the litigation precluded other employment

by the attorneys, (4) the contingent nature of the fee award...." (Graciano

v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In

setting the hourly rate for an attorney fees award, courts are entitled to consider

the rate of "fees customarily charged by that attorney and others in the community

for similar work." (Bihun v. AT&T Information

Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour],

overruled on other grounds by Lakin v. Watkins

Associated Indus. (1993) 6 Cal. 4th 644, 664.) The burden is on the party seeking attorney fees

to prove reasonableness of the fees. (Center

for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th

603, 615.)

The Court has broad discretion in determining

the amount of a reasonable attorney's fee award which will not be overturned absent

a "manifest abuse of discretion, a prejudicial error of law, or necessary findings

not supported by substantial evidence." (Bernardi

v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of

the amount of attorney's fees awarded in detail; identifying the factors considered

in arriving at the amount will suffice. (Ventura

v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, the Complaint was filed on July

2, 2024. Defendant answered the Complaint on August 12, 2024. Thereafter, Plaintiff

successfully opposed Defendant's motion for summary judgment. The parties conducted

discovery enabling to prepare for trial and file trial related materials. This case

was on the verge of jury trial when the parties settled and informed the Court of

such on November 4, 2025.

In general, Lemon Law litigation presents

certain routine issues which are applicable to other consumers' vehicles, which

would trigger economies of scale in terms of Plaintiff's counsel's efficiency in

litigating this type of Lemon Law case. The Complaint included two causes of action,

none of which were fraud-based.

The Court has examined the billing summary attached as Exhibit

2 of the Declaration of David N. Barry. The Court approves the hourly rates of \$350, \$550, \$675 and \$695 as per hour sought by Plaintiffs' counsel's firm to be reasonable for counsel with similar experience in the field. (Barry Decl., ¶¶ 13 - 15.) However, the Court reads into these hourly rate experience in consumer and lemon law litigation which would account for efficiency and knowledge that would be expected of counsel billing at these rates, which in turn should minimize the amount of legal research and drafting of discovery requests and responses required for this Lemon Law case.

"A

trial court is not required to state each charge it finds reasonable or unreasonable.

A reduced award might be fully justified by a general observation that an attorney overlitigated a case." (Karton v. Ari Design &

Constr., Inc (2021) 61 Cal.App.5th 734, 744-45.)

The Court acknowledges that Plaintiff's

counsel conducted discovery and successfully opposed a motion for summary judgment

(typically an expensive endeavor due to the legal and factual/evidentiary aspects),

and the parties fully prepared for trial. The Court finds that the reasonable amount

of attorney's fees incurred in this case, including bringing this motion for attorney's

fees, is \$52,768.00, which includes the time spent on

bringing this attorney's fees motion, but deducts \$5,838.00, as withdrawn by Plaintiff

in the Reply at Page 9:7-9. The Court declines to apply a multiplier. The

Court reads into the hourly rates charged by counsel the factors of risk and delay

in payment. As such, the Court does not find any justification for the application

of a multiplier and declines to apply such.

[E]ven though the trial court did not specifically mention other factors

open to consideration when a multiplier is under consideration, [an appellate] court

must presume that the trial court considered all factors in reaching its decision,

"even though the court may not have mentioned or discussed them in its written ruling."

(Citation omitted.)

(Mikhaeilpoor

v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 255.)

The Court does not find Defendant's

arguments requesting reduction in the total fee award to be persuasive.

Plaintiff's motion for attorney's fees

is GRANTED in the amount of \$52,768.00.

As for costs

and expenses, Plaintiffs filed a memorandum of costs on April 9, 2026 seeking \$3,231.04

in costs. Defendant did not file a timely motion to tax costs. \$3,231.04 is the

amount of costs which will be awarded. (Cal. Rules of Court, Rule 3.1700(b)(4).)

Opposing the costs in the opposition to the motion for attorney's fees ignores the fact that a memorandum of costs was independently filed, thereby triggering the procedure set forth in Cal. Rules of Court, Rule 3.1700(b).